

Her wicked practices against Cicely Balye.

A third subject whereupon this wrathfull womans anger wrought, was Cicely Balye, then servant to Robert Coulton, now wife of William Vaux, who sweeping the street before her maisters doore upon a Saturday in the evening, Mary Smith began to picke a quarrell about the manner of sweeping, and said unto her she was a great fat-tailed sow, but that fatnesse should shortly be pulled downe and abated. And the next night being Sunday immediately following, a cat came unto her, sate upon her breast, with which she was grievously tormented, and so oppressed, that she could not without great difficulty draw her breath, and at the same instant did perfectly see the said Mary in the chamber where she lay, who (as she conceived) set that cat upon her, and immediately after fell sicke, languished, and grew exceeding leane; and so continued for the space of halfe a yere together, during the whole continuance in her maister's service; untill departing from him, she dwelt with one mistress Garroway, and then began to bee amended in her health, and recover of her former pining sicknesse: for this witch had said, that so long as she dwelt neare her, she should not be well, but grow from evil to worse.

Thus every light trifle (for what can bee lesse then sweeping of a little dust awry?) can minister matter to set on fire a wrathfull indignation, and inflame it unto desired revenge, the Divell being willing to apprehend and take hold upon such an occasion, that so he might do some pleasing office to his bond-slave, whom she adored in submisive maner, upon her knees, with strange gestures, uttering many murmuring, broken, and imperfect speeches, as this Cicely did both heare and see, there being no other partition between the chamber wherein shee performed these rites, and the house of her maister with whom she then dwelt, but only a thin seeling of boord, through a cranny or rift whereof she looked, listened attentive unto her words, and beheld diligently her behaviour, and might have seene and heard much more, but that she was with the present spectacle so affrighted, that shee hasted downe in much feare and distemper.

Her wicked practice against Edmund Newton.

The fourth endamaged by this hagge, was one Edmund Newton: the discontentment did arise from this ground: because hee had bought severall bargaines of Holland cheese, and sold them againe, by which she thought her benefit to be somewhat impaired, using the like kinde of trading. The manner of her dealing with him was in this sort. At every severall time of buying cheese he was grievously afflicted, being thrice, and at the last, either she or a spirit in her likeness did appeare unto him, and whisked about his face (as he lay in bed) a wet cloath of very loathsome savour; after which hee did see one clothed in russet with a little bush beard, who told him hee was sent to looke upon

his sore legge, and would heale it; but rising to shew the same, perceiving hee had cloven feet, refused that offer, who then (these being no vaine conceits, or phantasies, but well advised and diligently considered observances) suddenly vanished out of sight. After this she sent her impes, a toad, and crabs crawling about the house, which was a shoppe planched with boords, where his servants (hee being a shooe-maker) did worke: one of which tooke that toad, put it into the fire, where it made a groaning noyse for one quarter of an houre before it was consumed: during which time Mary Smith who sent it, did endure, (as was reported) torturing paines, testifying the felt griefe by her out-cries then made.

The sicknesse which he first sustained, was in manner of a madnesse or phrensie, yet with some interposed release of extremity: so that for thirteene or foureteene weekes together hee would be of perfect memory, other times distracted and deprived of all sense. Also the ioynts and parts of his body were benumbed, besides other pains and griefes from which hee is not yet freed, but continueth in great weakness, disabled to performe any labour, whereby hee may get sufficient and competent maintenance. And by the counsel of some, sending for this woman by whom hee was wronged, that he might scratch her (for this hath gone as currant, and may plead prescription for warrant; a foule sinne among Christians to thinke one witch-craft can drive out another) his nailes turned like feathers, having no strength to lay his hands upon her.

And it is not improbable but that she had dealt no better with others then these above mentioned. For Mr. Thomas Yonges of London, fishmonger, reported unto me, that after the demand of a debt due unto Mr. John Mason, silkeman of the same citie, whose widow hee married, from Henry Smith glover her husband, some execrations and curses being wished unto him, within three or foure dayes (being then gone to Yarmouth in Norfolke upon necessary businesse) he there fell sicke, and was tortured with exceeding and massacring griefes, which by no meanes (having used the advise of sundry learned and experienced physicians in Norwich) could in any part be mitigated, and so extraordinarily vexed thirteene moneths, was constrained to go on crutches, not being able to feed himselfe, and amended not before this mischievous woman was committed to prison (accused for other wickednesses of the like kinde) at which time (so neere as he could conjecture) he then received some release of his former pains, though at the present when hee made this relation, which was at Candlemas last past, had not perfectly recovered his wonted strength: for his left hand remained lame, and without use.

But thus much by the way onely, omitting how before this accident a great water-dogge ran over his bed, the doore of the chamber where he lay being shut, no such one knowne (for carefull enquiry was made) either to have

bee in that house where hee lodged, or in the whole towne at any time.

I doe not insist upon this, because shee did not nominate him or any other unto us, but onely those foure already expressed: and for the wrongs done to them, shee craved mercy at Gods hands, as for all other her sins, and in particular for that of witch-craft, renounced the Divell, embraced the mercies of God purchased by the obedience of Iesus Christ, and professed that her hope was onely by his suffering and passion to bee saued. And all these, that is to say, her former grievous offences committed against God, and his people, her detiance of the Divell, and reposing all confidence of salvation in Christ Iesus alone, and his merits, shee in particular maner confessed openly at the place of execution, in the audience of multitudes of people gathered together (as is usuall at such times) to be beholders of her death. And made there also profession of her faith, and hope of a better life hereafter; and the meanes whereby shee trusted to obtaine the same, as before, hath beene specified. And

being asked, if shee would be contented to have a psalme sung, answered willingly that she desired the same, and appointed it herselfe, the Lamentation of a Sinner, whose beginning is, Lord turne not away thy face, &c. And after the ending thereof thus finished her life: so that in the iudgement of charity we are to conceive the best, and thinke shee resteth in peace, notwithstanding her heynous transgressions formerly committed: for there is no malady incurable to the Almighty physitian, Esai. 1, 18. Ezech. 33, 11. Therefore Caine did injury to God, when convicted of the barbarous and unnaturall murder of his righteous brother, he cryed out that his sinne was greater then could be forgiven, Gen. 4, 13. for Gods mercy is greater then mans misery can be. And even for the like unto this very fact, we have a booke case, already adiudged, and over-ruled in those Ephe-sians, who brought their coniuering bookes, sacrificed them in the fire, estimated at the value of 900*l.* of our money, repented of their sinnes, and obtained mercy, Acts 19, vers. 19.

113. Proceedings against Mr. WRAYNHAM, in the Star-Chamber, for Slandering the Lord-Chancellor Bacon of Injustice, Pasch, 16 JAMES I. A. D. 1618.*

BEFORE the duke of Lenox; the earl of Suffolk, lord treasurer; the earl of Worcester, lord privy seal; the earl of Pembroke, lord chamberlain; the earl of Arundel; Viscount Wallingford; sir Fu'ke Greville, chancellor of the exchequer; Dr. Abbot, lord archbishop of Canterbury; Dr. King, bishop of London; Dr. Andrews, bishop of Ely; sir Edward Montague, l. c. justice of the King's bench; sir Henry Hobart, l. c. justice of the Common Pleas; sir Laurence Tanfield, Lord chief baron of the Exchequer; sir Edward Coke; sir Thomas Lake, principal secretary; sir Henry Cary, comptroller.

Sir Henry Yelverton, Attorney General.—May it please your Lordships; It is the honour of this Court, that it represents the highest earthly majesty, and his presence; and it is his majesty's honour, that as himself is clothed with justice, so you, as the greatest and highest next his ma-

jesty, should put on the same garment. Clemency and justice are the two lights of every kingdom, without which your persons and estates would be exposed to violence, and without which great monarchies would be but great thefts; and as justice is not to be recompensed in price, so ought not the scandal hereof to go unpunished; especially, when it toucheth so great a person, as, in the sacred seat of justice, is next to the king; the Chief Judge in this Court, and the sole Judge in Chancery, who is much defamed by the gentleman at the bar, in the most precious point of all his virtues, his Justice: be it spoken without offence, basely and blamelessly is my Lord Chancellor traduced, as if he deserved that all the thunderbolts of heaven should fall upon him.

At my lord's first coming into this place, he found a Cause in Chancery, between this gentleman at the bar, and one Mr. Fisher, not controverted in the title, but concerning the value of the lease, which Fisher held of Wraynham; in which, the Lord Chancellor perused the proceedings of the cause, called the parties to give a summary end to so tedious a cause; and because the success answered not the desire of this gentleman, therefore he kicks against authority, who before was not more grieved at the expence, than now impatient at the sentence; which was not want of justice in my lord, but of equity in the cause.

I confess I was of counsel with Mr. Wraynham, and pressed his cause as far as equity would suffer; but I know that Judges look with other eyes than Counsellors do; they go not

* It should seem from the proceedings against Wraynham for libelling lord Bacon with regard to one of his Decrees, that the Chancellors sometimes decided causes rather in a more summary manner than is usual at present. See also what Roper, as quoted by Mr. Barrington, says of sir Thomas More's often stopping proceedings upon his perusal of bills preferred to him. Among other curious particulars to be inferred from this trial, it is very clear that the Master of the Rolls was then considered only as the first Master in Chancery, as his reports are frequently alluded to. See Barrington Observations on stat. 15 Hen. 6.

by tale, but by weight. And therefore, their judgment must answer the counsel, and quiet the mind of the party; and though in gaming losers may speak, yet in judgment they must be silent; because it is presumed that nothing is taken from them but what is none of theirs. But this gentleman being of an unquiet spirit, after a secret murmuring, breaks out into a complaint to his majesty; and not staying his return out of Scotland, but fancying himself, as if he saw some cloud arising over my lord, wearying and tiring his majesty with infinite supplications in this case. And now, my lords, as if all his former cause had been lost, he presents it no more in parts, or loose papers, but compiling his undigested thoughts into a Libel, though the volume was but in quarto, fastens it on the king on Good Friday last. And his most princely majesty, finding it stuffed up with most bitter reviling speeches against so great and worthy a Judge, hath of himself commanded me this day to set forth and manifest his fault unto your lordships, that so he might receive deserved punishment.

In this velvet pamphlet (for this Book is bound in velvet) is set forth his cause, the work of this day; wherein Mr. Wraynham saith, he had two decrees in the first Lord Chancellor's time, both under the great seal, and yet both are altered since the last lord chancellor's death, and cancelled by this lord chancellor in a preposterous manner; and 1, without cause; 2, without matter; 3, without any legal proceeding; 4, without precedent; 5, upon the party's bare suggestions; and 6, without calling Mr. Wraynham to answer. And of this, my lords, spitefully he imagines a threefold end: 1, to reward Fisher's fraud and perjuries; 2, to palliate his unjust proceedings, and to rack things out of joint; and 3, to confound Wraynham's estate: and that my lord was therein led by the rule of his own fancy. Yet he stayed not here; but, as if he would set spurs against my lord, he aggravates my lord's injustice to be worse than murder; saying, That in his Sentence, he hath devoured him and his whole family. And secondly, as if one sin should follow upon another, he doubles it upon my lord, and, in a manner, plainly gives my lord the lye. And hearing that my lord had satisfied his majesty in this case; he saith in his Book, that he that did it unjustly, must, to maintain it, speak untruly, adding falsehood to my lord's injustice; saying in his Book, it is given out my lord hath begged Wraynham's pardon: which, though it be the shew of a gentle heart, yet argues a guilty conscience, and is but my lord's cunning to avoid the hearing of the cause. And as if my lord should know his own disease to be foul, and were unwilling to have it searched or discovered; he charged my lord with shifts, and tells him that he hath palliated oppression with greatness, wit and eloquence; and that the height of authority makes men presume. And to make this yet more sharp, he urgeth, that my lord, to maintain this, useth secret means, whereby the unsoundness of his actions may not be seen,

and so to avoid censure; and, as if my lord should have skill in magic, he saith, That my lord hath raised a report from hell of the late Master of the Rolls, which was confuted before his face, and damned before his death: not content to scandalize the living, but so far, my lords, doth his malice overspread his wisdom, that he doth not cease, with his nails, to scrape the dead out of their graves again. When it is well known unto your lordships, that the Master of the Rolls was a man of great understanding, great pains, great experience, great dexterity, and of great integrity; yet, because this cause fell by casualty into his hands, by reverence from the last lord chancellor, and he followed not this man's humour in his report; therefore he brands him with these aspersions, and adds this to the rest, That he grounded this report upon witnesses that swore impossibilities, gross absurdities, and apparent untruths. How can you but think, my lords, but that this gentleman's head is full of poison, seeing it fell out so fast then into his pen, trampling upon the dead? And this is an addition unto his punishment, the injury of him that is dead, because the state yet lives, wherein his justice is scandalized.

And now, my lords, that you may the more detest his slanders, whereby he goeth about to slander my Lord Chancellor's justice; give me leave to open the plain and even way, wherein this great judge walks in this particular case. The questions in Chancery at first were two, between Wraynham and Fisher, upon cross suits, either against the other; Wraynham complains of trust broken, whereby he was defrauded; Fisher upon a debt of a private reckoning detained by Wraynham. Upon proof of both these, it was by assent ordered, That Fisher should assign the lease made unto him upon trust, and Wraynham should pay the money, so well proved to be due to Fisher: so by assent was the decree had, which is the first decree.

But Mr. Wraynham, wisely suspecting that Mr. Fisher had incumbered his lease, and if it should be assigned to him according to the decree, it would be merely illusory; he exhibits a new bill to discover what charge, and in what sort, Fisher had charged the land with incumbrances. And Mr. Wraynham finding the incumbrances greater, upon the reference of the lord chancellor to the master of the rolls, a bargain was mediated between them, that Fisher should hold the lease in question, and Wraynham should have after the rate of twelve years purchase; and to this both assented: so that your lordships see that the first decree was not cancelled by my Lord Chancellor, but discharged by himself; for by the decree he might have had the lease; but he contented himself with twelve years purchase.

After this, the question grew upon the value, which being referred to the last Master of the Rolls, how the value was at first, before the improvement, when it was in lease to one Harply, and there, upon proof and oath of divers wit-

nesses, the Master of the Rolls returned and certified the constant produce of the lease to be worth 200*l.* by the year; whereupon Wraynham was to have it at twelve years purchase, amounting to 2,400*l.* Mr. Wraynham seeing the land was much improved by a defence made against the sea and other means, whereby the nature of the land was altered, and the profit much raised, moves the Lord Chancellor not to recede from the bargain, but saith, that the value returned was not the true value, for the land was worth 400*l.* by the year, and yet excepts by retainer in his hands, 2000 marks which be owed to Fisher, 1,066*l.* old money; whereby now Mr. Wraynham had received his 2,400*l.* in his purse. And when he saw himself thus fleeced, having received 2,400*l.* for that which cost but 200*l.* now he stirs up new suits, and moves the Lord Chancellor by a commission to refer the value to two knights that had been farmers to the land, that they might certify the true value: the one, sir L'Estrange Mordaunt, who certifies the value 318*l.* yearly; and the other, sir Henry Spillman, certified the value to be 364*l.* yearly; and my Lord Chancellor strikes between them, and makes it 340*l.* So here is a difference of values, the first of 200*l.* upon oath yearly, and this at 340*l.* yearly, without oath. The first value is at the time of Harply's lease, the second is at the time of the commission granted; and after improvement of which, your lordships well know in your wisdom, the difference between land barren, and improved in value. The last Lord Chancellor, according to the amounting value of 340*l.* a year, annexed the increase to Wraynham's bargain, and that he should have it, as if the lands were worth 340*l.* per ann. So that now, the 2,400*l.* in his purse, had been worth 1,680*l.* annexed above 4,000*l.* Mr. Fisher finding this annexed to the bargain, and that he should be pressed to pay the surplusage, and that he had choice either to pay the money, or to part with the lease; Fisher moved the court, that he might give up the lease, and desires his first 2,000 marks with damages, which Wraynham assented to, so that he might have defalcation of that which Fisher had received of the profits of the land. Upon this, upon consent of parties, it was again decreed (and this is the second Decree, which Wraynham so much triumphs upon, not being an absolute and positive Decree, but qualified with this): 1. That Wraynham should pay the 2,400*l.* with damages to Fisher: and 2. That Wraynham should have defalcation of such profits as Mr. Fisher had received out of the land.

Mr. Wraynham strives with this second Decree, being willing to have the value of the land, not according as Fisher had received, but what he might have recovered.

Now my Lord-Chancellor finding the case thus standing, thought it no injustice against Wraynham's own offer, nor that Fisher should lose his damages, having forborn 2400*l.* ten years, nor that Wraynham should be allowed more defalcation than Fisher could receive, be-

cause he was tyed to a dry rent; and finding that Wraynham was neither willing nor able to return the 2400*l.* with damages unto Fisher, my Lord-Chancellor thought fit to establish the bargain, according to the first certificate of the master of the rolls upon oaths; because the last certificate without oath, was not so equal in the balance of justice, as that with oath, certified by the master of the rolls, upon the examination of divers witnesses.

Now, my good lords, if this case stands thus, what injustice is there committed? What unsoundness is there in this action? or, what cause is there for my Lord-Chancellor to hide himself, that this gentleman should in this case declaim against him this day? If it were, my lords, to make my Lord-Chancellor, for fear, to take off his hand; he will let the world know he is more constant and courageous in the points of justice, than that which he did so justly, so slightly to revoke. And if it were to this end, to make my Lord-Chancellor to dispute with Mr. Wraynham; I am to let you know from his majesty, that he will not let him forego, nor forget his place, so much as to enter into debate with Mr. Wraynham, knowing that it were not fit for him to stand to wrestle or wrangle with Mr. Wraynham, but rather to despise so mean an adversary.

My lords, you know, that wise and just men may walk the same way, though not the same passage; there are divers courses and divers ways to the same end, justice: for justice sake, they are both to be honoured, neither to be blamed. For, my lords, if judges should be traduced as unjust, because they differ in opinion, they should have thankless offices. Justice is the harmony of heaven, but 'Lingua detractio est lancea triplex.' Though this gentleman hath sweat hard to scoff and dare so high a judge, yet the razor of his tongue cannot charge him that any thing came between God and his own conscience, but the merits of the cause; though it be certainly true, whilst a man carries this flesh about him, his judgments and faculties will be imperfect. Yet, my lords, I know that my lord is the branch of such a tree, who, though he blossom'd last, yet took more sap from the root than any of the rest: the son living in the memory of so worthy a father, the father living in the memory of so virtuous a son, who may say, as Agesilaus once said to his father, 'I obey you in judging nothing contrary to law.'

I am glad this gentleman is so naked of excuse, yet heartily sorry his defamation is so foul, as to draw such a snarl of punishment as this will be upon him; and here if necessity (the true defender of man's wickedness) should step in, I answer, Though necessity break through all laws, yet flying into the face of justice, it must be broken by justice; else no subject can be safe, nor no court keep itself from intamy.

It is well, my lord, that this fault falls out but seldom; for being exorbitant when it happens, it cannot but be foul. It is a pernicious

example; for by this, when slanders are presented instead of complaints, that is but to set divisions between the king and his great magistrates, to discourage judges, and vilify justice in the sight and mouths of all the people. Therefore I beseech your lordships to pardon me, if I be too long, and suffer me to shew your lordships what this court, in like cases, hath done.

In the second year of his majesty's reign, when sir Edward Coke, according to his place, informed against Foorth in this court, *ore tenus*, for petitioning his majesty against the last Lord-Chancellor, for granting an injunction for staying of a suit at the common law, (which your lordships know how necessary it is) he being convicted upon his own confession, received a sharp censure. I will conclude with this one, and I shall desire your lordships, in this place, to hear it read; and then do humbly beseech your lordships to hear the gentleman at the bar, either for his defence, or excuse.

Then Wraynham's Examinations were read in this Book and Epistle.

Then he was charged with these words following, in the end of his Epistle to his majesty: 'He that judgeth unjustly, must, to maintain it, speak untruly; and the height of authority maketh men to presume.' Also, in shewing of his majesty reasons why the Master of the Rolls was faulty, he said, 1. The master of the rolls had omitted many of his material proofs. 2. He shifted off other some. 3. That he sometimes wrested the equity of his cause. 4. That he did falsely cite Fisher's proofs. 5. That he grounded the report upon the deposition of witnesses that swore absurdities, untruths, and mere impossibilities. And, lastly, as if the report had been condemned and damned before to the pit of hell, he said it was raised as *ab inferno*.

In his Epistle to his majesty, he is charged with these words: 'I understand my Lord-Chancellor hath begged my pardon: it is outwardly the shew of a great heart, but inwardly it argueth a guilty conscience; otherwise, if first I had been found guilty, and his lordship should then have interceded with his majesty for me, it had been an argument of an indulgent nature; but to beg pardon where there is no need, was manifestly done to avoid an hearing, and not in pity towards me; for he that despoils me of my goods, I will not trust him with my person. And therefore, far be it from me to hope, or trust in his goodness: I disclaim his favour, and infinitely deplore the judgment of his majesty.'

And in the conclusion of his Epistle were these words: 'I desire to suffer at your gates, if I shall dare to slander so great and eminent a judge, unto so great and wise a king. If he should not desire to reward the Fishers for their fraud and perjuries, I know not why he should have rucked all out of joint. My lord, with this his last cunning and rhetorick, hath polluted his unjust proceedings against me; for my lord's gesture and pronunciation in his speech is wanting in my writing, out of which

'a cloudy mist may rise to hide the verity of your princely judgment.—I could never see by what reasons or words his lordship hath coloured his dealings to excuse himself unto your majesty, understanding only a piece, and not the whole from your majesty. This must move me most humbly to beseech your majesty to save my wife and children; and out of your princely justice to appoint a day of hearing, whereby there shall appear unto your majesty, as well the sincerity of my affirmations, as the unsoundness of his lordship's actions. For I never sought corners, but openly, and sometimes in my lord's presence, have notified and complained of my wrongs, and desire a public hearing before your majesty, which the greatest subject dares not do without truth and justice.'

And in another place, Wraynham saith, 'My lord chancellor proves nothing by record, nor delivers any thing by writing, to answer the things objected against him; but would hide himself from the eyes of your majesty's justice.'

His majesty saith, though he receive petitions from his subjects against his highest justices; yet he will have his judges know, that they are subject to his account only, and to none else upon earth. His majesty received this petition on Good-Friday last, in which this gentleman hath so far exceeded the measure of an humble complaint, that I must appeal to your lordships against him.

Then was Foorth's precedent read, bearing date 14th Nov. termino Mich. 2 Jac. 1. And likewise Foorth's two last Petitions against my lord-chancellor, touching which reference is had. And the lords asked Mr. Wraynham what he could say for himself.

Mr. Wraynham. Right honourable, and my very good lords; from a man so perplexed with so many miseries, what can be expected? and what marvel, if I should falter, or might let fall any speech that might seem uncomely? My lords, I know not how to behave myself, I will not willingly offend any, but especially the king's most excellent majesty; yet nature commands me to defend myself, for it cannot be thought he can be faithful to another, that is not so to himself. And therefore I humbly desire that what I offer in extenuation, or defence, that neither the meanest that hear it, nor your lordships, which are to judge of it, would take it offensively. My Book consisteth of three parts. 1. An Epistle to his majesty. 2. The body of the book, which relateth the truth of all the proceedings. And, 3. a conclusive Speech in the nature of an epilogue.

Touching the body of the Book, and the truth of the cause, I conceive it not now called in question, for I think your lordships will not enter into the particulars; but because it hath pleased Mr. Attorney to speak something of it, I will not be silent. My accusations, my lords, are set forth in two things: 1, that the complaint is of the right-hon. the lord-chancellor. 2. That it is in bitter and unreverend terms.—

certificate, and found 200*l.* a-year to be as much as the lands were worth. Hereupon the Lord Chancellor gave a day to shew cause, why the cause should not be decreed, which was the Order, quarto Maii, 1610. After this the lord Hobart, then Attorney, in the presence of the master of the rolls himself, did set down the defects of his own report.

Lord-Treasurer. My lords, this is contrary to all course, this must not be; for we mean not to enter into the merits of the cause.

Mr. Attorney Yelverton. Mr. Wraynham, for you to shift it off, doth but aggravate your offence; for when you say, you used the rest of your phrases as *synonymics* to injustice, that implieth a taxation of his lordship in point of justice; and so likewise do your words imply, when you say, by the greatness of his wit and eloquence he doth palliate the injustice of the cause: therefore tax my lord particularly with one point of injustice.

Here Mr. Wraynham would not instance in any one particular.

Wrayn. Had I thought his majesty would not have heard my cause, I would have sat down in silence, and have devoured my sorrow. I have formerly set down to your lordships, that my decree was reversed without a bill.

Mr. Attorney. That is, when the bill is absolute and constant, for there it must have a bill of revivor; but when it depends upon subsequent acts, and is qualified and conditional, there it may be reversed without bill.

Wrayn. I humbly submit myself in all things to your honourable and clement censure: for the manner, I beseech your lordships pardon; and for the matter, I humbly crave compassion.

Mr. Serjeant Crew. May it please your lordships, the prisoner at the bar hath made a good submission at the last, I would he had begun with it. My lords, the flux of foul mouths must be stopped, otherwise the greatest magistrates will be traduced and slandered to majesty himself; and though it be not treason, yet I have heard it from a great and honourable person sitting in this place, that it is *crimen læsæ majestatis*. My lords, for the two lords, the one that lives, the other that is dead, and their demeanor in this case, in honour of him that is dead, and without flattery to him that is alive; I say, they both judged according to their consciences. The Lord Chancellor that is dead, gave his judgment according to his conscience, and not according to the conscience of another man, but according to the integrity of his own heart: for the judges are to judge *secundum æquum et bonum in foro conscientiarum*. And this lord also judged out of his noble conscience and integrity of his heart; for, my lords, there was no binding decree. As for the merits of the cause, it must not be examined of the one side, nor of the other, for both lords have done according to conscience *coram Deo et hominibus*. And each hath delivered his own sense according to their consciences. The lord which is dead, when he was alive, was one of the oracles of the wisdom

of the time; and my living lord attributes very much unto him, whom God hath also enriched with great ornaments of nature; for no man, no magistrate, hears with more attention, nor no magistrate of justice attends with more understanding and patience. You then, Mr. Wraynham, thus to traduce my lord, is a foul offence, with that black mouth of yours: you cannot traduce him of corruption, for thanks be to God, he hath always despised riches, and set honour and justice before his eyes; and where the magistrate is bribed, it is a sign of a corrupted estate. For the justice of the cause; my lords, I was of counsel with Fisher, and I knew the merits of the cause; for my Lord Chancellor seeing what recompence Fisher ought in justice to have received, and finding a disability in Wraynham to perform it, was enforced to take the land from Wraynham to give it to Fisher, which is hardly of value to satisfy Fisher's true debt and damages. And this, my lords, was the true course of it; so it stands upon these parts your lordships have heard. I am glad at last to hear Mr. Wraynham's Submission, and do humbly crave your lordship's censure.

Sir Edward Coke. The cause before you, my lords, is a very great cause, for a man must tread in this course upon a very slender bridge: I will single out, as near as I can, the state of the question, and then I will shew you in others, upon what words, and in what I shall ground my sentence: for a complaint to the king's majesty, or a petition by any man that thinks himself wronged, I hold that regularly to be no offence. God forbid it should be so: I can make no hedge between the sovereign and the subject; nay, in some kingdoms, *Querelas subditorum detrahere in principe deserentur capitale est*. And that would be derogation from a monarch, that no subject should complain unto him; yet upon the statute of Westminster, and at common law, I make no question, but to shew you, that where petitions were made to the king in an unfit manner, they have been severely punished. Our case is now particularly in a sentence given by my Lord Chancellor, an eminent Judge in this Court, and a sole Judge in the highest Court of Equity that is in this kingdom; yea, this case is after sentence, and against the sentence, and with many such scandalous and opprobrious terms against so high a Judge; and that not in paper, but in a book presented to the king: this book in my hand, which the king hath delivered to the attorney-general, that it might come before us for due punishment. Whether this Book be justifiable, or no; that is the question.

It is a black Book, *Est jam conveniens luctus iste color*. And it is a strange Book for some things that I will shew you, for it is no petition; and yet I will confirm every word I say by ancient and modern authorities; whereof, I am sorry, very sorry in good faith, for the excellent and worthy parts that are in you, Mr. Wraynham. Now mark your own words in your Book; you call it a *Review*, or

Revivor of the Report of the Master of the Rolls, Phillips, and the Decree of my Lord Chancellor: the High Commissioners have sometimes a Commission of Review, but it is very rare: and that is a Commission of Grace, not of Right: such a Review is presented unto his majesty by Wraynham, in which he deals not like a petitioner, but like a censurer, censuring every man that deals in the cause.

Mark how the Common Law sets forth a petitioner: it gives no ill words, it toucheth not men of injustice; for take this from me, that what grief soever a man hath, ill words work no good; and learned counsel never use them. And therefore the petitioner at the Common Law, is, 'Si placet majestati,' &c. 'et quod justitia et rectum fiat,' &c. Now in your Petition, see whether you have behaved yourself well: first, you make your major proposition; The unjust sentence of a Judge, is far worse than a particular murder: then your minor is, That my Lord Chancellor hath satisfied his majesty, that I have informed him falsely; but his majesty knoweth, that he that judgeth unjustly, must, to maintain it, speak untruly; and that your lordships and all logicians know, the conclusion followeth necessarily.—First, he chargeth my Lord Chancellor with injustice, not complaining of any particular to be referred to examination; but saith in general, 'He hath done unjustly, and is worse than a murderer; and that he hath informed the king falsely.'

My Lords; You know, if a man put false metal into the king's coin, it is treason; and if my Lord Chancellor shall infuse poison and false information into the king's ear, it was an heinous offence. Yet this contents not Wraynham; but he flieth at all, saying, 'That the height of authority maketh men presume.' And hath a place of Scripture in his Book, 'Woe be to them that write wicked Decrees; and in another place he saith, 'Oppression is palliated with wit and eloquence.' My Lords, ought these things to be in a petitioner? A petitioner must go meekly and humbly to work, without shew of touch of any man.

I will not omit a dead man; for, though spoken of him, it is a living fault. As for this Master of the Rolls, never man in England was more excellent for the Chancery than that man; and for aught I heard, (that had reason to hear something of him) I never heard him taxed of corruption, being a man of excellent dexterity, diligent, early in the morning, ready to do justice: for him to be taxed in such a high degree, as to omit some of the material proofs, to shift off others, to wrest the equity of the cause, and such-like: and in another place, 'That the Master of the Rolls made an unjust and corrupt gloss upon a false text, &c.' And in another place, he saith, 'That sir Edward Phillips's report was raised *ab inferno*.'

My Lords; You know that the slander of a dead man is punishable in this court, as Lewis Pickering is able to tell you, whom I caused

here to be censured for a slander against an Archbishop that is dead; for justice lives, though the party be dead: and such slanders do wrong the living posterity and alliance of the man deceased. But Mr. Wraynham spares not the king himself; for in one place of his Book he saith, 'assurgat rex,' &c. as if the king slept. And in another place he saith, 'That the Decree is reversed without precedent.' But that is not so, as I will satisfy you anon.

For Mr. Wraynham's censure, I will never judge a man without authority and reason: 18 E. 1, in Rotulo Parliament 3, my Lord-Abbot there complained that Solomon of Wragg, and Hugh Courtney then Chief-Justice, had confederated to give judgment against the Abbot. And the king answered, 'Shall we, upon this petition, call a judgment in question?' And in the end, the answer is, 'Rex rogabit, et aliter facere non potest per legem terræ.' And my Lord-Abbot, because he was a lord, escaped punishment at that time.

Another precedent I will shew you, is, Mich. 18 E. 3, Rot. 151, *coram Rege*. Thomas Wilbraham petitioned against the Justices of the King's-bench, 'That they had not done according to law and reason.' And the petition was delivered to the representative body of the king and his council; for the which the said Wilbraham was indicted, convicted, fined, and ransomed in the King's-bench.—19 Ass. p. 3, Between sir William Scott and Humphrey Hunney, who complained to king Edw. 3. 'That sir William Scott, Chief-Justice, had awarded an assize contrary to law.' And the king sent it to the Judges; whereupon Hunney was imprisoned, judged, fined, and ransomed: yet he had no remedy but in parliament.

The Statute hath made a sharp law against such as speak scandalous news of the Chancellor, justice of the King's-bench, &c. And because divers were punished for slanders, in petitions to his majesty; therefore, 13 R. 2, rot. parl. numb. 45, the commons desired they might not be troubled for any matter that should be contained in petitions to the king: and the king answered, 'Let every man complain, so it be with law and reason.'

Wraynham objected a place of Scripture for himself, where the Psalmist saith, 'I have said in my fury, that all men are liars.' The text is, 'Dixi in excéssu:' so Wraynham saith, 'It was not in his fury, but in his excess.'—And another thing that Wraynham offered in his defence, was the king's words, where he saith, in his Book, 'Be hold to complain.' But of what? Of corruption? So likewise, in Rot. Parl. 24 Edw. 3, parl. 3, numb. 16. 'If any man mix corruption with his censures, *Anathema sit*.' So likewise it is extant in the Rolls of the Parliament *de la plbe*, that the great de la Pole was convicted of bribery, and put from his place; and Cardinal Wolsey was convicted of a foul corruption.

But if a man, according to sincerity, give judgment, though he differ from another Judge, this is no injustice. Famous Dyer gave judg-

ment in the Common Pleas, and this was reversed in the King's-Bench; yet he discharged his conscience: and although it was afterwards reversed, yet it was no injustice. The like instance might be made of sir Christ. Wray, and others. Now, in this case, my Lord-Chancellor that is living, differs from the Lord-Chancellor that is dead. This is not strange, it hath ever been, and ever will be; but if a judge's conscience be oiled and moistened with corruption, then all is naught.

The king hath the Pleas of the Crown, and upon every Judgment one of the parties is angry and displeased: but this must not presently produce a new hearing, for that will hinder all other businesses. For I will put you a great case between a nobleman here, and divers other noblemen that were trusted by the countess of Southampton, who were all Plaintiffs, and sir Moyle Finch Defendant: and this was Mich. 42 and 43 Eliz. The main point that was controverted in the cause, was upon an exception of a manor (as I remember) in the *habendum* of the deed, which my lord-chancellor then thought void. And therefore decreed, 'That my lady of Southampton should have all.' Whereupon sir Moyle Finch petitioned queen Elizabeth, that she should refer the examination of the decree to some of the judges; but the queen would never refer any thing to those that were named unto her, but she referred it to two other judges not named in the petition, who attended my lord-chancellor; and they then resolved it against the decree, and my lord reversed his own decree.

I know I have held your lordships long; yet I cannot tell, in these critical days, whether men will be satisfied, which hath made me longer than I would have been. Therefore, to conclude, I agree, in all things, with the sentence given in Foorth's Case of 2 Jac.

Sir *Fulke Greville*, Chancellor of the Exchequer. This Court hath no intent to discourage the meanest subject of his lawful appeal unto his prince; for that were to disinheret the people of law, and the king of the intelligence of the oppression that might fall upon his people. But this case I suppose not to be within the first. The matter in such cases, is but a review of an inferior sentence of a superior magistrate, my Lord Chancellor of England: and that before he be heard, making the king his speedy executioner.

But examine the nature of these accusations, and you shall find them mere scandals, and impossibilities; as breaking decrees, rewarding frauds and perjuries, palliating oppressions with greatness, wit, and eloquence. Why, my lords, if this liberty should spread, then I desire the indifferent hearers to see in what a miserable case the subject stands, when the right of every good man shall stand in the malignity, and enquiet nature of every turbulent spirit? And, my lords the judges, in what a case stand they, if by such clamours every delinquent shall be made judge over them? and what pri-

vilege shall the king my master have? For if this humour should take a little head, will it not carry both him and justice into the field? And therefore I conclude, that this is severely to be punished; and is not a petition, but a presumptuous challenge, and of so far a worse nature beyond duels, as honour and universal justice is beyond particular right: and therefore I agree with him that went before me, leaving his good parts to mercy, and his ill parts to the censure of Foorth's Case.

Lord Chief Baron, Sir Laurence Tanfield. This cause is a cause of a high nature, being a scandal of a great and principal officer of the kingdom, and of one that is an high and eminent person: which scandal is set forth in this Book, which certainly I cannot call a petition: for the petitioner hath presumed too far, that it is a plain revise of a decree. Every man knoweth, that the Chancellor hath the keeping of the great-seal, whereby is managed mercy and justice: and if this great person so trusted shall be thus traduced by every offender, how insufferable will this mischief be?

I doubt not but that by a right way, you may, by a petition in an humble course, and submissive manner, desire his majesty that he would be pleased to review a Sentence in Chancery, or else grant a commission to others to review the same. But doth this man observe this course? No, but he will be his own judge, sentencing his own cause. I can call this Book no better, than a scandalous and malicious invective against the Lord Chancellor; and that not without great bitterness, as I have heard. First, he taxeth him with injustice: then mark the circumstances; he saith, 'My Lord Chancellor hath reversed the Decree, without cause, without new matter, without legal proceeding, without precedent, and upon a bare suggestion.' Then he goeth further, saying, 'Injustice is worse than murder; for this Decree hath devoured him and his whole family.' And, not content with this, chargeth him with oppression, and palliating it with greatness, wit, and eloquence; than which, a greater and heavier scandal cannot be!

You shall not be barred of access to his majesty; but that by a petition you may desire to have a Decree reviewed, and that his majesty would grant a commission to review it. But these things must be done legally, and then the law protects us, though it be against a nobleman. Sir Richard Crofts did sue an action for forgery of false deeds against the lord Beauchamp; whereupon my lord Beauchamp sued an action upon the statute de Scand. Magnat. But that would bear no action, because it was done legally: for a man may suppose in his writ such a fact, by the use of the said writ; but he must beware that he prove it well, or else he shall be well fined in the same court. But much more shall he deserve a fine, if he shall do it without writ, or without ground or proof, as Wrayham hath done. And therefore, because I must be short, I think him

fully worthy of the censure before given, in all points.

Lord Hobart, Chief Justice of the Common Pleas. Mr. Attorney hath very worthily and like himself, according to his place, brought this man into this court, to give answer for the greatest and most outrageous offence that of this kind hath been committed; in which case, I will first tell you, what I do not question, and then what I do question.

For the first, Petitions may be exhibited to the king without controversy; nay, in some cases they must be exhibited; and God forbid, that any man's way should be locked up, or that any subject should be barred of access to his majesty; for when appeals fail, and when ordinary remedy is wanting, so that there is no judge above the highest judge; yet, you may still resort unto your sovereign for extreme remedy: this is proper to a king, 'Cessas regnare, si cessas judicare;' for it is an inherent quality to his crown. So that without controversy a man may petition against a sentence; for God forbid, that we that are judges, should draw that privilege to ourselves, to give sentence, and not to hear it examined. But it is true, it must be presented as a supplication, and you must go formally to work: ordinarily you must go to the proper courts of justice; if that fails, the extraordinary course is open by the king: and this is no more than to shew to his majesty, how you find yourself grieved, and then remit the cause and form to the king's wisdom.

But now see what this man hath done, he hath made neither the matter nor form of a petition. First, for matter, he pretends, that is not saying that my lord-chancellor hath expressly infringed two decrees, when he hath done nothing, only crossed an order, than which, there is nothing more common, for they are but interlocutory, and not definitive.—And for form, this is no petition, no book, as he would call it, but an express, peremptory and audacious libel. Then the manner offends yet more: for whereas a supplication imports, that a man should speak it upon his knees, for as it is in some realness, men attempt nothing against law, but they must do it with a rope about their necks: so that he that goeth about to attempt any thing against a decree, he doth it with a rope of the king's censure about his neck: but mark the carriage of this man, how insolently he proceeds in this case!

First, for the king, as hath been well observed, he saith, 'assurgat Rex;' as if he should bid the king arise and take revenge.

Therefore for the Decree, he saith, that the foundation of it came from hell: if that be so, then this sentence must needs be hellish, when he falls upon a poor man, the master of the rolls: I call him poor man, because he is not living to answer for himself, but yet he was a worthy minister of justice, (for I had much cause to know him) and he was of as much dexterity and integrity, as ever man that sat in his place, and I believe the chancery will find want of such a man. But not content with

this, he scorns my lord-chancellor's courtesies, and carries himself, as if he would trample all under foot.

So much for the manner: as for the matter, it is odious: the person with whom he hath to do, is the principal officer and magistrate of justice in the kingdom, one that hath the nomination of all the justices of peace, and the principal that names all the sheriffs: one that keeps and carries the seal, and sits chief judge in this court, and sole judge in the chancery.—And shall we think that this man is bought and sold to corruption, to injustice, to murder? What more tends to the king's dishonour, than that he should place in the judicature such an unworthy man? a man infinitely the more wronged, because he deserves his place, as well as any man that went before him: and yet his last predecessor was very excellent, and deserved no small commendations. But Wraynham I condemn, as a man barbarous both toward the living and the dead: wherefore, there is a justice and tribute due to the master of the rolls deceased. I would have mention made of it in the decree, and with that addition to the sentence, I concur in all things with the president of the court.

Sir Edward Mountague, Lord Chief-Justice. My lords, it is a true saying, 'Judicium non redditur nisi in invitum.' For I yet never saw any man sit down satisfied with a sentence that went against him. I would not so far have blamed Wraynham as to have censured him for complaining to the king: yet this restraint I find in law, which any man may see in king Edgar's law. "Let no man complain to the king in matters of variance, except he cannot have right at home, or that right be too heavy for him. Then let him complain to the king." Whereby it is meant, that if the laws be so strict, he shall complain in a court of equity to the king himself. Then, to complain is not denied to any man, for all justice comes from the king, and though he distribute his justice to be ministered in several courts, yet the primitive power resides still in his person. Therefore, to the justice of his majesty may any subject have resort: but this must be humbly as a petitioner, not as Mr. Wraynham hath done here, who is not a suitor, but a censurer: and doth not complain, but proudly rails upon a high judge.

Can you, Mr. Wraynham, charge your judge with corruption, through fear or affection? (for I make them both alike;) Spare not the chief judge nor highest counsellor: I say, spare us not, whenever you can take us. But a judgment is pronounced from the sincerity of our consciences, and warranted by our judgment and learning: shall we then undergo the censure of every suitor? No state, at no time, ever suffered this.—My lords, it lies upon us Judges as a duty, to restrain this boldness: our places as Judges, give us no privilege to do what we list, nor have suitors liberty to speak as they list of judges: God, and order, hath set bounds to both.

For the matter heretofore handled in the Chancery, it is not a work of this day to deal with that; we meddle not with your Decrees, we censure you only for your scandals. I saw in your Book a smooth pen, and from your tongue I have heard fair speeches; but in both I see a fiery spirit. For you would raise up dissention between the two Lord-Keepers of the king's conscience, him that now is, and him that was, and now is, with God. of these two worthies I shall not say much; I will neither wrong the dead, nor flatter the living. The matter of difference, for any thing I can see, or you can say, is but an order against an order, wherein judgment may be varied by occasions, and through circumstances: true attributes are no flatteries. This honour let me give to these two great men: of greater parts, better fitted for that place, never sat in this place: nay, a man may truly say, that the world hath scarce yielded two such men of so excellent gifts, in this latter age of the world.

But you, Mr. Wraynham, wronged both the living and the dead. Of the Master of the Rolls, that is dead, you spake your pleasure: but all that hear you, and know him, will be ready to give you the lye. You say that he should omit some of the proofs, and wrest otherwise, and ground himself upon witnesses that swore impossibilities, and absurdities, &c. Whoever knew that man, knows him to be a true reporter, and a judicious collector upon proofs, as ever was. I will not dissemble what others thought a fault in him, to be over-swift in judging: but this was the error of his greater experience, and riper judgment, than others had.

Now, for my Lord-Chancellor, by the words you use, you lay four of the greatest crimes upon him, that can be laid upon a judge: Presumption, Oppression, Falsity, and Injustice: all these you utter, with one breath, charging him with all in one sentence: for you say, 'Height of authority makes great men presume:' there is presumption and oppression. And in these words, 'He that judges unjustly, must, to maintain it, speak untruly:' there you accuse him of falsity and injustice. 'Ex ore tuo te judico, serve nequam.' For in your book you say, 'Let me suffer as a traitor, if all that I say prove not an entire truth, if I should dare to slander so great a judge to so wise a king.' Therefore, out of your own mouth I pronounce sentence against you, *lese majestatis*: and though not as a traitor, yet as a great scandalizer. And if all were true that is said in your book, yet would I censure you for your quarrel with my Lord-Chancellor for form; and yet yourself use no form, no, not common civility. So that if it were against a common man, it were punishable, to offer such words to the eye of a King, as here you give to my Lord-Chancellor, calling him a rewarder of frauds and perjuries, an afflictor of the afflicted, a racker of things out of joint, a confounder of your estate, and the like.

These are not words fitting a Petitioner, to

be spoken of a Lord-Chancellor, to be offered to a king. And, my Lords, this man's fault goeth one step higher, touching the person of majesty itself. I am a judge of crown-matters; and in this libel, I think he hath scandalized the king in four things: First, he saith, 'The king is but a man, and so may err;' implying an error in the king. Secondly, 'That my Lord-Chancellor defends himself by secret means, and that you are not called to answer.' Than which, what greater tax unto so high a majesty, to condemn and not to hear! Thirdly, 'That my Lord-Chancellor doth cover his injustice with wit and eloquence.' When we all know, that we have a sovereign of those high and excellent gifts, that it is not rhetoric, or eloquence, that can cast dust in the king's eyes, or cause him any ways to turn aside from justice. Lastly, you say, 'That a man may distaste truth, and suspect judgment;' applying it unto his majesty. Which offences reaching so high, my censure shall be the heavier upon you.

Now it will rest, what shall be done with this man? As I give my sentence from his own mouth, so I will take advice from himself; he saith, 'State super viis antiquis,' Look what our ancestors have done of old, so let us do. In this then, you shall see what they did in like cases.—Mich. 13. of the queen, Rot. 39. Henry Blaunsford, a counsellor at law, was committed to the Fleet, and fined for false reporting the opinion of the lord Leicester, and secretary Cecil, with these words, 'Humanum est errare.'

So likewise, 19 Hen. 8. my lord Stourton was committed by the court, and fined, for saying these words, 'I am sorry to see rhetoric rule where law should.'—Sir Rowland Flaxing was committed, and fined, for reporting to the king, 'That he could have no indifferency before the lords of the council.' For which he was deeply fined, 7 Feb. 18 H. 8.—So likewise, in the time of Hen. 7. sir R. Terres was committed, fined, sent to the pillory, and adjudged to lose both his ears for his slanderous complaint exhibited to the king in a written Book; and that against the chief-justice Fitz-James: the punishment of him that depraved the good judge sir James Dyer, is fresh in memory.—So that party which said judge Catlyne was an unjust judge. 8 Eliz. Rot. 10. whose name was Thomas Welch, of London, who was indicted in the King's-Bench for this as for an offence against the common-law. His words that were delivered, were these: 'My Lord-Chief-Justice Catlyne is unconsid' against me, I cannot have justice, nor can be heard; for that court now is but a court of conscience.' This Indictment was found, and the record was, that it was a *negligent contempt Domine Regine ac cur' sue, ac in ingn' scandalum, ac ignominiam legis Anglie, ac in scandalum capitis justiciarii, ac in malum exemplum omnium subditorum.*

So it is that this offence of Wraynham's is against the law, the commonwealth, and the justice of the kingdom: and therefore, according to the law, and with the

next Justice